

M/S Jai Krishna Cold Storage Pvt. Limited v. State of U.P.

Allahabad High Court · Single Judge · 16 June 2021 · Writ-C No. 11270 of 2021 · WRIT - C No. 11270 of 2021 · **Appellate order set aside; s.127 appeal remanded for fresh decision.**

HEADNOTE

Writ against dismissal of a Section 127 appeal from an unauthorized-use assessment of Rs. 43,94,819/-. The High Court held the appellate order non-speaking for failure to consider the grounds in the memo of appeal, set it aside, and remanded the appeal for a fresh decision after due opportunity, preferably within three months.

FACTUAL SUMMARY

The petitioners, a cold-storage company and another, were served undated assessment orders based on a checking report dated 12 August 2017, raising a demand of Rs. 43,94,819/- for alleged illegal consumption of electricity. They preferred a statutory appeal numbered Computerized Case No. C201803000002325. The appellate authority dismissed the appeal on 9 February 2021. In the writ they contended that the dismissal was non-speaking and had ignored the grounds in the memo of appeal; the electricity authority did not file a counter affidavit.

REUSABLE CONSTRUCTIONS

1. A Section 127 appellate order that does not consider the grounds taken in the memo of appeal is a non-speaking order without application of mind and is liable to be set aside with a remand for fresh decision after due opportunity. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

s.127 appellate order must consider appeal grounds

HOLDING

An order dismissing a statutory appeal against an unauthorized-use assessment is unsustainable where it is non-speaking and the appellate authority has not considered the grounds raised in the memo of appeal. The impugned appellate order dated 9 February 2021 is set aside and the appeal is remanded to be decided afresh after due opportunity, in accordance with law, preferably within three months. ¶ 1

FLAG Court described the appeal as under 'Section 127 of Uttar Pradesh Electricity Supply Code, 2003'; Section 127 is of the Electricity Act, 2003.

PRINCIPLE TAGS

s127-appellate-authority-must-exercise-independent-judgment Dismissal of the s.127 appeal was set aside as non-speaking and without application of mind because none of the grounds in the memo of appeal had been considered; the appellate authority was directed to decide afresh after due opportunity. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNAUTHORIZED-USE ASSESSMENT AND THE DEMAND OF RS. 43,94,819/-
Appeal remanded for fresh decision; the Court did not examine the checking report or the assessment on merits. ¶ 1

